

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUPP023718: JANE ROE, A MINOR BY AND THROUGH HER GUARDIAN AD
LITEM DIANDRA FRIENDS vs SANTA PAULA UNIFIED SCHOOL DISTRICT**

09/16/2026 in Department 42

**Motion to Quash Deposition Subpoena for Production of Business Records Issued to Sage
Oak Charter Schools**

Motion: Plaintiff Jane Roe's Motion to Quash Deposition Subpoena for Production of Business Records Issued to Sage Oak Charter Schools (*opposed*).

Tentative Ruling:

Plaintiff Jane Roe's Motion to Quash Deposition Subpoena for Production of Business Records Issues to Sage Oak Charter Schools is GRANTED in part and DENIED in part.

Notice to be provided by Defendant.

Discussion:

Defendant served the Custodian of Records for Sage Oak Charter Schools a subpoena requesting production of the following records:

1. Any and all educational records relating to ____ including but not limited to transcripts, report cards, records of disciplinary referrals, behavioral incidents, detention records, suspension records (in-school and out-of-school), incident reports, witness statements, investigative materials maintained by the school, communications with parents or guardians concerning disciplinary issues, and records reflecting disciplinary actions taken or considered.
2. Any and all MENTAL HEALTH and MEDICAL RECORDS from the first date of treatment up until the present date (i.e. the date of production for the subject subpoena), RELATING TO TREATMENT provided to ____.
3. Any and all MENTAL HEALTH and MEDICAL BILLS from the first date of treatment up until the present date (i.e. the date of production for the subject subpoena), RELATING TO TREATMENT provided to ____.
4. Any and all records of any COMMUNICATIONS to and/or from ____ and/or her legal representative from the first date of treatment up until the present date (i.e. the date of production for the subject subpoena).

Plaintiff objected to the subpoena on the following grounds:

1. Fails to describe the documents sought with reasonable particularity;
2. Is overly broad in time and scope in that it seeks any and all medical and billing records of any kind not directly related to the current case;

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3. Is not reasonably calculated to lead to the discovery of admissible evidence and therefore seeks documents that are beyond the scope of permissible discovery;
4. Fails to comply with the notice and service requirements established by the California Code of Civil Procedure; and
5. Seeks information protected by _____ Constitutional Right to Privacy.

Plaintiff has a privacy interest in the subpoenaed records. However, as to records concerning her mental health, the need for the information outweighs her interests as she has placed her mental health at issue in this lawsuit.

The Court agrees the requests are overbroad and adopts the analysis from its ruling on the motion to quash the subpoena directed to McKinna Elementary. The motion to quash is DENIED as to educational records related to concerns expressed by others about Plaintiff's mental health, Plaintiff's own complaints or concerns related to her mental health, and any records reflecting treatment for Plaintiff's mental health. As to all other categories, the motion is GRANTED.